

Court No. - 39

Case :- WRIT - C No. - 7197 of 2021

Petitioner :- Sanjay Rastogi

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- B.D. Shukla

Counsel for Respondent :- C.S.C.,Rajendra Kumar Mishra

Hon'ble Mrs. Sunita Agarwal,J.

Hon'ble Deepak Verma,J.

Sri Rajendra Kumar Mishra learned counsel has put in appearance on behalf of the respondent.

The petitioner seeks to challenge the recovery certificate dated 30.12.2019 on the ground that the petitioner is neither consumer of the connection in-question nor he is in possession of the property, wherein the said connection had been granted in the name of one Noor Mohammad. The attention of the Court has invited to page Nos.46 & 48 of the paper book to submit that the actual consumer of the connection in-question is Noor Mohammad and the recovery of electricity dues cannot be pressed against the petitioner.

The issues being raised herein are factual in nature, it is open for the petitioner to approach the Executive Engineer concerned by invoking provision of Clause 6.5 of the U.P. Electricity Supply Code' 2005. In case, the petitioner approaches the Executive Engineer concerned, he shall deal with it in accordance with law.

The writ petition cannot be entertained.

Dismissed as such.

Order Date :- 16.3.2021

Himanshu